

CHAPTER 31.

An Act to consolidate and amend the law respecting the Retirement, Pensions, Allowances, and Gratuities of Members of Police Forces in Great Britain, and their Widows, Children, and Dependants. [28th July 1921.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Retirement and Pensions.

1.—(1) Retirement shall be compulsory in a police force—

Age of
compulsory
retirement.

for sergeants and constables, on attaining the age of fifty-five;

for superintendents and inspectors, on attaining the age of sixty;

for chief constables and assistant chief constables, on attaining the age of sixty-five:

except that in special cases the chief officer of police, or, where the person concerned is a chief constable or assistant chief constable, the police authority, may extend any such person's service for a further period, in no case exceeding five years, on being satisfied that such extension would be in the interests of efficiency:

Provided that, in the case of a borough having a separate police force, any such extension shall be subject to the approval of the watch committee.

(2) Retirement shall also be compulsory for any member of a police force who is required to retire by the police authority on the ground that his retention in the force would not be in the interests of efficiency, after he has become qualified by length of service to receive on retirement without medical certificate a pension at the rate of two-thirds of his annual pay.

Pensions
and gratui-
ties of
members of
a police
force.

2.—(1) Subject to the provisions of this Act, every member of a police force—

- (a) if he has completed twenty-five years' approved service, and has given three months' written notice, or such shorter notice as the police authority may accept, to the police authority of his intention to retire, shall be entitled, on the expiration of such notice, without a medical certificate to retire and receive an ordinary pension for life; and
- (b) if he has completed ten years' approved service, and is incapacitated for the performance of his duty by infirmity of mind or body, shall be entitled on a medical certificate to retire and receive an ordinary pension for life; and
- (c) if at any time he is incapacitated for the performance of his duty by infirmity of mind or body occasioned by an injury received in the execution of his duty without his own default, shall be entitled on a medical certificate to retire and receive a special pension for life; and
- (d) if he has not completed ten years' approved service, and is incapacitated for the performance of his duty by infirmity of mind or body not occasioned by such injury as aforesaid, shall be entitled on a medical certificate to retire and receive a gratuity.

(2) Where a member of a police force is compelled to retire under this Act on the ground of age, then—

- (a) if he is not entitled without a medical certificate to retire and receive a pension, he shall be entitled to receive such ordinary pension or gratuity as he would have been entitled to receive had he then retired on a medical certificate; and
- (b) any pension or gratuity to which he is entitled shall be payable as from his retirement, and no notice of intention to retire shall be required.

(3) A chief constable or assistant chief constable appointed after the commencement of this Act shall not, except with the consent of the police authority, be entitled to retire without a medical certificate and receive an ordinary pension, unless at the time of his retirement he has attained the age of sixty.

(4) No gratuity shall be payable to a member of a police force who retires before the expiration of any period which is declared by regulations made under this or any other Act to be a period of probationary service.

• **3. Subject to the provisions of this Act—**

Pensions
and gratui-
ties of
widows.

- (a) where a member of a police force who, having joined the force after the first day of September, nineteen hundred and eighteen, has completed five years' approved service, dies whilst serving in the force, or whilst in receipt of a pension from a police authority, or in consequence of any disease or injury on account of which he retired from a police force, his widow shall be entitled to a widow's ordinary pension; and
- (b) where in any case a member of a police force dies whilst serving in the force from the effects of an injury received in the execution of his duty without his own default, or, having been granted a pension in respect of any such injury, dies from the effects of such injury, his widow shall be entitled, where the injury was accidental to a widow's ordinary pension, and where the injury was non-accidental to a widow's special pension; and
- (c) where a member of a police force dies whilst serving in the force and his widow is not entitled to a pension under this Act, his widow shall be entitled to a gratuity; and
- (d) where a widow is entitled to a pension under this Act, and the police authority are satisfied that there are special reasons for the grant of a gratuity in lieu thereof, the police authority may, at their discretion and with her consent, grant her a gratuity accordingly.

4. Subject to the provisions of this Act—

Allowances
and gratui-
ties of
children and
dependants.

- (a) where a member of a police force dies whilst in the force, or where a member of a police force, having been granted a pension, dies within twelve months after the grant of the pension, or at any time from the effects of an injury received in the execution of his duty without his own default, his children under

sixteen years of age shall be entitled to allowances until they severally reach the age of sixteen years; and

- (b) where the child of a member of a police force is entitled to an allowance under this Act, and the police authority are satisfied that there are special reasons for the grant of a gratuity in lieu thereof, the police authority may, at their discretion and with the consent of the man's widow, or, if he leaves no widow, the guardian of the child, grant a gratuity accordingly; and
- (c) where a member of a police force dies whilst in the force, or where a member of a police force, having been granted a pension, dies within twelve months after the grant of the pension, or at any time from the effects of an injury received in the execution of his duty without his own default, the police authority may, if they think fit, grant a gratuity to any relative who has been wholly or mainly dependent upon him.

Scales of pensions, allowances and gratuities.

5. The pensions, allowances and gratuities payable under this Act shall be in accordance with the scales and provisions contained in the First Schedule to this Act, and the general rules contained in Part III. of that schedule shall apply to such pensions, allowances and gratuities.

Pensions of constables continuing to serve after qualification for pension.

6.--(1) Where a member of a police force is entitled to retire on a pension without a medical certificate, but continues to serve in the force, the police authority may, if they think fit, direct that he shall be entitled, on retiring at any time thereafter, to receive a pension not less in amount than that to which he would have been entitled if he had retired instead of continuing in the force, and in such case the right to receive on retirement such pension shall not, while he continues to serve in the force, be liable to forfeiture, except in the cases in which a pension when granted is liable to forfeiture under this Act.

(2) Before giving any such direction, and every year thereafter, the police authority shall cause him to be examined by some duly qualified medical practitioner, and, if on any such examination it is found that he is not physically fit for further service, the police authority shall not permit him to continue to serve in the force.

(3) Where such a direction is given, a member of a police force, who is entitled to retire without a medical certificate and to receive a pension at the maximum rate provided by this Act, may be granted, in consideration of his continuing to serve, an allowance at a rate not exceeding twelve-and-a-half per cent of his pay. Any such allowance, if granted, shall not be reckoned in the calculation of the amount of pension or gratuity awarded, and no rateable deduction shall be made therefrom under this Act.

Approved Service.

7.—(1) The service of a member of a police force for the purposes of this Act shall be subject to such deductions in respect of sickness, misconduct, or neglect of duty as may be made therefrom in pursuance of any regulations affecting the force to which he belongs, not exceeding the period during which he is absent from duty on account of sickness, misconduct, or neglect of duty, as the case may be; and the expression “approved service” shall, for the purposes of this Act, mean such service as may, after such deductions as aforesaid (if any), be certified by the chief officer of police to have been diligent and faithful service, but shall not include service before attaining the age of twenty years, except in the case of a member of a police force who before attaining that age is incapacitated for the performance of his duty by infirmity of mind or body occasioned by an injury received in the execution of his duty without his own default.

Service to
be reckoned
for pension.

(2) Where a deduction is made from the service of a member of a police force in respect of sickness, misconduct, or neglect of duty, notice of the deduction shall be given to him as soon as may be after the occurrence of the cause for which the deduction is made; and he may appeal to the chief officer of his police force against any act of any superior officer which prevents him from reckoning any period of actual service as approved service, and any period of actual service allowed by the chief officer on such appeal shall be deemed to be approved service:

Provided that, in the case of a borough having a separate police force, the decision of the chief officer shall be subject to the approval of the watch committee.

Continuous
service in
two or more
forces.

8.—(1) Where a member of a police force has served in more than one police force, approved service in any such police force in which he has completed not less than one year's approved service, and from which after the commencement of this Act he has with the written sanction of the chief officer of that force removed to another force, shall be reckoned as approved service in the force in which he is serving at the time of his death or retirement.

(2) Where any member of a police force who is entitled under this section to reckon any previous service in another force, or his widow, or any child or dependant of his, in due course is granted a pension, gratuity or allowance, the police authority in whose service he then is, or was at the time of his death or retirement, shall be entitled to call upon the other police authority or authorities, and they shall contribute a proportionate part of any pension, gratuity or allowance granted to him or his widow or any such child or dependant, reckoned according to his approved service and pay during his service in such force, and the said proportionate part shall be settled by agreement between the police authorities, or in default of agreement by an arbitrator appointed by the Secretary of State.

(3) This section shall apply in cases where the previous service was service in a police force in Ireland, but in that case the said proportionate part shall be determined by the Treasury.

Discon-
tinuous
service in
one or more
forces.

9.—(1) Where a member of a police force who has retired from the force without a pension subsequently rejoins the force, there shall be reckoned as approved service the period of approved service which he was entitled to reckon at the end of his previous service, if he repays to the police authority the amount of any gratuity which may have been granted to him, or of any rateable deductions from his pay which may have been paid to him, by the police authority in respect of his previous service.

(2) Where a member of a police force who has retired from the force without a pension subsequently joins or has joined some other police force, the police authority of that other force may, if they think fit, allow the period of approved service, not being less than one year, which he was entitled to reckon at the end of his service in the first-mentioned force, to be reckoned as approved service,

if he pays or has paid to the police authority of that other force the amount of any gratuity which may have been granted to him, or of any rateable deductions from his pay which may have been paid to him in respect of his service in the first-mentioned force.

(3) Payments by a member of a police force under this section shall be effected by means of deductions from pay, or otherwise as the police authority may determine.

10.—(1) Where a person has served in two or more of the following capacities—

	Service in more than one capacity.
(i) as a civil servant within the meaning of the Superannuation Act, 1887, or as an officer of the staff of the metropolitan police within the meaning of the Metropolitan Police Staff (Superannuation) Act, 1875 ;	50 & 51 Vict. c. 67. 38 & 39 Vict. c. 28.

(ii) in a police force with a salary paid out of the police fund ;

(iii) in a police force with a salary paid wholly out of money provided by Parliament ;

(iv) in a police force with a salary paid partly out of money provided by Parliament ;

he shall be entitled to reckon his entire period of service (other than service before attaining the age of twenty) in both or all capacities for the purpose of pension, and the pension shall be on the scale and subject to the statutory requirements affecting pensions in the service from which he last retires :

Provided that—

(a) for the purpose of pension, three years of police service shall be reckoned as equivalent to four years of service as a civil servant or as an officer of the staff of the metropolitan police, and vice versa ; and

(b) the pension shall be payable from money provided by Parliament and from the police fund or funds in such proportions as may be determined by the Treasury, regard being had to the period of approved service and the pay received in each capacity ; and

(c) the pension of one of His Majesty's inspectors of constabulary who has previously served in a police force may be increased by such an

amount as the Treasury may consider fair and reasonable having regard to the amount of pension which he would have been entitled to receive had he continued to serve in the police force.

(2) In this section the expression "pension" includes any gratuity, allowance or other similar payment.

Service of
men be-
longing to
reserve
forces.

11. Where a member of a police force with the knowledge of the police authority or of the chief officer of the force belongs to any royal naval reserve force or to the army reserve or air-force reserve, and is required for training or called into actual service or called out for training or for permanent service, he shall be entitled, on returning to the police force after the end of such training or service, to reckon any approved service which he was entitled to reckon at the commencement of such training or service; and his period of training or service and any period during which he was incapacitated for police duty owing to an injury received during his period of training or service without his own default, shall be reckoned in the computation of the approved service.

Grant, Revision, Forfeiture, and Offences in respect of Pensions.

Proof of
incapacity
for duty,
liability to
serve again,
and revision
of pension.

12.—(1) Before granting a pension or gratuity on the ground that a member of a police force is incapacitated by infirmity of mind or body for the performance of his duty, the police authority shall be satisfied by the evidence of some duly qualified medical practitioner or practitioners, selected by the police authority, that he is so incapacitated, and that the incapacity is likely to be permanent.

(2) Where the application is for a special pension, the police authority shall also be satisfied that the injury was received in the execution of duty, that it was received without the default of the applicant, and that the infirmity is attributable to the injury, and shall determine whether the injury was accidental or not, and the degree of disablement; and, for the purpose of determining any of the said questions which ought to be determined on medical grounds, shall take the like evidence as above mentioned.

(3) Where any pension is granted on the ground of incapacity for the performance of duty, the police authority

shall, yearly or otherwise, until the power under this section of requiring the pensioner to serve again ceases, satisfy themselves that the incapacity continues, and, unless they resolve that such evidence is unnecessary, shall satisfy themselves by the like evidence as above mentioned.

(4) In the event of the incapacity ceasing before the time at which the pensioner would, if he had continued to serve, have been entitled without a medical certificate to retire and receive a pension for life, the police authority may cancel his pension and require him to serve again in the police force, in a rank not lower than the rank which he held before his retirement, and at a rate of pay not less than that on which his pension was calculated.

(5) Where a pensioner so serves again, the provisions of this Act shall apply as if he had not previously retired, save that, except where the pension was granted in respect of a non-accidental injury received in the execution of duty, he shall not reckon as approved service the time which elapsed between his former retirement and the recommencement of his service.

(6) Any special pension shall be granted for such period as may be fixed by the police authority, and, if at the expiration of that period the degree of disablement is unaltered, the pension shall, at the discretion of the police authority, be either renewed from time to time or made permanent. If within five years of the pensioner's retirement or at any time before the pension is made permanent the police authority are satisfied by the evidence of a duly qualified medical practitioner that the degree of the pensioner's disablement has substantially altered, the pension shall be reassessed according to the degree of disablement.

(7) If a member of a police force or pensioner refuses or wilfully or negligently fails, when required by the police authority, to be examined by some duly qualified medical practitioner selected by that authority, the police authority may deal with him in all respects as if they were satisfied by the evidence of such a practitioner as to whether he is incapacitated for the performance of duty or, as the case may be, as to the degree of his disablement.

(8)—(a) Where, for the purposes of this section, any person is medically examined by a medical practitioner selected by the police authority, and is dissatisfied with

his opinion on any medical question, he may appeal, in accordance with rules made by the Secretary of State, to an independent person nominated by the Secretary of State.

(b) The police authority shall be bound by the decision of any medical question which is determined on any such appeal, but, subject to this provision, the decision of the police authority on any question arising under this section shall be final.

(c) Rules made by the Secretary of State for the purposes of this section may make such provision as appears expedient with respect to the costs of any appeal.

Power to reduce pension where infirmity is due to misconduct.

13. Where a member of a police force retires on account of infirmity of mind or body, and the police authority are satisfied on medical evidence that he has brought about or contributed to the infirmity by his own default or his vicious habits, the police authority may, in their discretion, reduce the amount of his pension or gratuity by an amount not exceeding one half of that to which he would be otherwise entitled.

Assignment of pensions and regulations as to payment of pensions, &c.

14. The following provisions shall have effect with respect to every pension, allowance and gratuity (in this section referred to as a grant) payable by the police authority to any person (in this section referred to as the pensioner):—

- (1) Every assignment of and charge on a grant, and every agreement to assign or charge a grant, shall, except so far as made for the benefit of the family of the pensioner, be void, and on the bankruptcy of the pensioner the grant shall not pass to any trustee or other person acting on behalf of the creditors:
- (2) Where any parochial relief is given to a pensioner or to anyone whom the pensioner is liable to maintain, the police authority may pay the whole or any part of the grant, or of the instalment thereof next due, to the guardians or other authority giving the relief, and any sum so paid may be applied in repayment of any sums expended in such relief, and, subject thereto, shall be paid or applied by the guardians or other authority to or for the benefit of the pensioner:

- (3) If the pensioner neglects to maintain any person whom the pensioner is liable to maintain, the police authority may in their discretion pay or apply the whole or any part of the grant to or for the benefit of that person :
- (4) Where any sum is due from the pensioner to the police authority the police authority, or, in the case of the metropolitan police, the Receiver for the metropolitan police district, may deduct the amount of any such sum from the grant :
- (5) If the pensioner appears to the police authority to be insane or otherwise incapacitated to act, the police authority may pay so much of the grant as they think fit to the institution or person having the care of the pensioner, but shall in such case pay the surplus (if any) for or towards the maintenance and benefit of the dependants (if any) of the pensioner except so far as the said surplus may be otherwise applied for the benefit of the pensioner :
- (6) On the death of a pensioner to whom a sum not exceeding one hundred pounds is due on account of a grant, then, if the police authority so direct, probate or other proof of the title of the personal representative of the deceased may be dispensed with, and the sum may be paid or distributed to or among the persons appearing to the police authority to be beneficially entitled to the personal estate of the deceased pensioner or to or among any one or more of those persons, or in the case of the illegitimacy of the deceased pensioner, to or among such persons as the police authority may think fit, and the police authority, and any officer of the police authority making the payment, shall be discharged from all liability in respect of any such payment or distribution :
- (7) Every grant which is a pension or allowance shall be paid, after the first instalment, in advance, except in the case of refusal to quit police quarters or any premises owned or rented by or on behalf of the police authority or the Receiver for the metropolitan police district, or to give up any equipment, or to make any

payment due to the police authority or the Receiver; but, where a person dies whilst in receipt of a grant paid in advance, no return shall be required of any payments which have been made in respect of any period after his death:

- (8) Any sum payable to a minor on account of a grant may be paid either to the minor or to such person and on such conditions for the benefit of the minor as to the police authority seems expedient:
- (9) Where a payment is made to any person by a police authority in pursuance of this section, the receipt of that person shall be a good discharge to that authority for the sum so paid.

Forfeiture of
pension or
allowance.

15.—(1) A pension or allowance under this Act is granted only upon condition that it becomes forfeited, and may be withdrawn by the police authority, in any of the following cases, that is to say, if the grantee—

- (a) is convicted of any offence and is sentenced to penal servitude or to imprisonment for a term exceeding three months; or
- (b) knowingly associates with thieves or reputed thieves; or
- (c) refuses to give to the police all information and assistance in the power of the grantee, for the detection of crime, for the apprehension of criminals, or for the suppression of any disturbance of the public peace; or
- (d) enters into or continues to carry on any business, occupation or employment which is illegal, or in which the grantee has made use of the fact of former employment in the police in a manner which the police authority consider to be discreditable or improper; or
- (e) supplies to any person or publishes in a manner which the police authority consider to be discreditable or improper any information which the grantee may have obtained in the course of employment in the police; or
- (f) solicits, or, without the consent of the police authority, accepts directly or indirectly any

testimonial or gift of a pecuniary value on retirement from the police, or otherwise in connection with his service in the force; or

- (g) enters into or continues in any business, occupation or employment as a private detective, after being prohibited to do so by the police authority on any reasonable grounds.

(2) Such forfeiture and withdrawal may affect the pension or allowance wholly or in part, and may be permanent or temporary, as the police authority may determine.

16.—(1) If a person obtains or attempts to obtain for himself or for any other person—

Penalty for obtaining pension, &c. by fraud.

- (a) any pension, gratuity, or allowance under this Act, or any payment on account thereof; or
(b) the return of any rateable deductions from pay under this Act;

by means of any false declaration, false certificate, false representation, false evidence, or personation, or by malingering or feigning disease or infirmity, or by maiming or injuring himself, or causing himself to be maimed or injured, or otherwise producing disease or infirmity, or by any other fraudulent conduct, he shall be liable on conviction on indictment to imprisonment for a term not exceeding two years, or on summary conviction to imprisonment for a term not exceeding three months or to a fine not exceeding twenty-five pounds, and in either case to forfeit any pension, gratuity, allowance or other sum so obtained.

(2) Any fine imposed or sum forfeited for an offence under this section shall be paid to the police fund of the force from which the pension, gratuity, allowance or other sum was obtained or attempted to be obtained.

17.—(1) Where—

- (a) a pension or allowance after being granted has subsequently in pursuance of this Act been declared to have been forfeited; or
(b) any person claims as of right a pension, allowance or gratuity under this Act, and the police authority do not admit the claim; or

Appeal in case of forfeiture or refusal of pension, gratuity or allowance.

(c) any person claims as of right a pension, allowance or gratuity under this Act larger than that granted to that person ;

the person aggrieved may apply to the police authority for a re-consideration of the case, and, if aggrieved by the decision upon such re-consideration, may apply to the next practicable court of quarter sessions for the county within which the member of a police force concerned last served, or if he last served in the police force of a borough having a separate police force and a separate court of quarter sessions, then to the next practicable court of quarter sessions for that borough, and that court, after inquiry into the case, may make such order in the matter as appears to the court just ; but nothing in this section shall confer a right to appeal against the exercise of any discretion, or against any decision which is declared by this Act to be final.

(2) An appeal shall lie on a point of law from any decision of quarter sessions under this section to the High Court in accordance with rules of court, and the decision of the High Court shall be final, but in all other respects the decision of quarter sessions shall be final.

Suspension
of pension in
case of ser-
vice in an-
other force.

18. Where a person in receipt of a pension under this Act from a police authority takes service in any police force, his pension may be suspended by that police authority in whole or in part so long as he remains in that service :

Provided that this section shall not apply to a member of the first class of the police reserve called up for active service, or to an ex-member of a police force who joins a force for service in an emergency.

Rateable Deductions.

Rateable
deductions
from pay.

19. The police authority of every police force shall deduct from the pay of every member of the force sums at the rate of two and a half per cent. per annum on his pay (in this Act referred to as rateable deductions).

Return of
rateable
deductions.

20.—(1) Where a member of a police force, not having been dismissed or required to retire as an alternative to dismissal, leaves the force without a pension or gratuity, the police authority, except where he leaves in such circumstances as will enable him to reckon his approved service in the force for the purpose of pension, shall pay

him the whole of the rateable deductions which have been made from his pay.

(2) Where a member of a police force is required to retire as an alternative to dismissal, the police authority may, if they think fit, pay him the whole or any part of such rateable deductions as aforesaid, or apply the same in such manner as they think fit for the benefit of his wife or children (if any), and, where a member of a police force is dismissed, the police authority may, if they think fit, apply the whole or any part of such rateable deductions as aforesaid in such manner as they think fit for the benefit of his wife or children (if any).

General.

21. Nothing in this Act shall prejudice any existing right of dismissing a member of a police force, or requiring him to retire as an alternative to dismissal, or reducing him to any lower rank or lower rate of pay, or shall prevent his claim to pension from being refused on account of misconduct, or on account of any of the grounds on which his pension, if granted, would be liable to be forfeited and withdrawn.

Saving of right of dismissal and reduction in rank.

22.—(1) All payments to the members of any police force or their widows, children, and dependants under this Act, or any enactment repealed thereby, and all payments by one police authority to another under this Act or any such enactment, and all other payments which in any enactment are directed to be made out of the pension fund, shall be made out of the police fund, and the pension funds of all police forces to which this Act applies shall be abolished.

Payment of pensions out of police fund.

(2) The payments specified in the Second Schedule to this Act (being payments which before the passing of this Act were made into the pension fund) shall, in lieu of being made into that fund, be made into the police fund, and the assets of any pension fund abolished under this section shall, subject to any directions of the Secretary of State, be transferred to the police fund:

Provided that any investments standing to the credit of a pension fund shall, subject to such directions as aforesaid, continue to be held by the police authority as investments, and any income therefrom shall be paid to the police fund.

53 & 54 Vict.
c. 60.

(3) The annual sums required under the Local Taxation (Customs and Excise) Act, 1890, as amended by any subsequent enactment, to be applied for the purpose of police superannuation in England and Scotland respectively shall be distributed amongst the police funds in England and Scotland respectively in the proportions in which those sums were distributed in the financial year ended the thirty-first day of March, nineteen hundred and fifteen, amongst the pension funds in England and Scotland respectively :

Provided that the apportionment of the amount so to be distributed in the case of a borough police force established since the year nineteen hundred and thirteen shall be determined by agreement between the council of the borough and the council of the county in which it is situated, or, in default of agreement, by the Secretary of State.

(4) Nothing in this section shall affect the method in force at the time of the commencement of this Act of paying pensions in the case of the county police in the divisions of Lincolnshire, or the payments to be made into the fund out of which those pensions are paid, and the enactments relating to that fund shall continue to apply thereto, and, for the purpose of the last preceding subsection, that fund shall be deemed to be the police fund :

Provided that, if a joint committee of the several standing joint committees for the three divisions of Lincolnshire should hereafter be constituted for general police purposes, such committee shall thereafter have the management of the joint superannuation fund in lieu of the joint committee appointed under the provisions of section twenty-two of the County and Borough Police Act, 1859, as amended by section seven of the Police (Superannuation) Act, 1865.

22 & 23 Vict.
c. 32.
28 & 29 Vict.
c. 35.

(5)—(a) A police authority shall not, in respect of any year, receive any payment under this section unless the Secretary of State gives a certificate that the management and efficiency of the police force under that authority and the administration of this Act by that authority have, during that year, been satisfactory ; and, if the Secretary of State withholds that certificate as regards any police authority, the amount which would otherwise be payable to that authority under this section shall be forfeited to the Crown and paid into the Exchequer.

(b) Before any such certificate is finally withheld in respect of any police force, the Secretary of State shall communicate with the police authority of the force, and that authority may address any statement on the subject to the Secretary of State; and, in every case in which the certificate is withheld, a statement of the grounds on which the Secretary of State has withheld his certificate, together with any such statement of the police authority, shall be laid before Parliament.

23. Subject to the provisions of this Act and of any regulations made under any statutory powers of the Secretary of State, every police authority may make regulations with respect to— Power for police authority to make regulations.

- (a) the deductions from service for sickness, misconduct or neglect of duty; and
- (b) the mode in which pensions are to be paid; and
- (c) the declarations to be made as a condition of the payment of pensions, gratuities, or allowances payable by the authority;

and otherwise for the purpose of giving effect to the provisions of this Act.

24. The provisions of this Act, unless otherwise expressly stated, shall apply to a chief officer of police in like manner, so nearly as circumstances admit, as they apply to any other member of a police force, except that the certificate of approved service and the sanction to removal from one force to another may be given by the police authority. Application to chief officers of police.

25. This Act shall apply to the metropolitan police force, subject as follows :— Application to metropolitan police.

- (1) Anything authorised or required to be done with the approval of a Secretary of State, or by a Secretary of State on the submission or application of a police authority, may be done by a Secretary of State alone :
- (2) The court of quarter sessions to which an application is to be made with respect to a decision as to a pension, gratuity or allowance shall be the court of quarter sessions for the county of London :

- (3) The rateable deductions from the salary of the commissioner of police of the metropolis and from such part of the salaries of the assistant commissioners of police of the metropolis as is paid out of money provided by Parliament, shall be paid into the Exchequer :
- (4) The provisions of this Act as to the age of compulsory retirement and the age of retirement without medical certificate shall apply to the commissioner, assistant commissioners, and deputy assistant commissioners of police of the metropolis as they apply to a chief constable :
- (5) The rates and conditions of pension of the commissioner, assistant commissioners, and deputy assistant commissioners of police of the metropolis shall be regulated by the provisions of this Act, and not by the provisions of the Metropolitan Police Staff (Superannuation) Act, 1875, subject, however, to any special arrangement which may be made in exceptional circumstances in the public interest by the Secretary of State with the approval of the Treasury.

Applica-
tion to City
of London
police.

26.—(1) In the application of this Act to the City of London—

- (a) the expression “ member of a police force ” shall include the commissioner, assistant commissioner, surgeon and any officer of the City of London police force and any clerk or person employed in or in connection with that force ;
- (b) the provisions as to the age of compulsory retirement and the age of retirement without medical certificate shall apply to the commissioner and assistant commissioners of the City of London police as they apply to a chief constable.

(2) The court of quarter sessions to which an application is to be made with respect to a decision as to a pension, gratuity or allowance shall, in the case of the City of London Police, be the Court of Quarter Sessions for the City of London.

(3) All pensions or gratuities payable by the Common Council to widows of members of the police force of the City of London shall, as from the commencement of this Act, be payable out of the police rate of the City of London.

(4) The application of this Act to the City of London police force shall not prejudice any right possessed at the date of the passing of this Act by any member of that force.

27. Where a member of the first class of the police reserve is called up for active service with a police force, or where an ex-member of a police force, whether a pensioner or not, joins a force for service in an emergency—

Application
to police
reservists.

- (1) If he is incapacitated for the performance of his duty by infirmity of mind or body occasioned by an injury received in the execution of his duty without his own default, or dies as the result of such injury, the same special pension to himself or pension to his widow and allowances or gratuities to his children or dependants shall be payable as are payable under this Act in the case of other members of a police force in similar circumstances, but based on his current rate of pay and his service with the force since he was last called to or joined the force as aforesaid;
- (2) A special pension shall, in such case, be payable to a member of a police force in addition to his ordinary pension (if any), but no increase shall be made in such ordinary pension in respect of service to which this section relates;
- (3) If the service to which this section relates is with a police force other than that in which he last previously served, then, if a pension becomes payable to his widow, the amount of a widow's ordinary pension shall, so long as the pension continues, be payable by the police authority of the force in which he previously served to the police authority of the force in which he was serving when injured, but any other pension, allowance or gratuity payable in respect of service in the force in which he was serving when injured shall be paid wholly by the police authority of that force.

28. This Act, in its application to members of a police force who are women (hereinafter referred to as police women), shall have effect as from the date of their

Application
to police
women.

appointment as members of the police force, subject to the following modifications:—

- (1) No provision relating to pensions, gratuities or other payments to or for the benefit of the widow or wife of a member or ex-member of a police force shall apply to the widower or husband of a police woman :
- (2) No allowance or gratuity shall be payable in respect of any child of a deceased police woman during the lifetime of the father, except where the police authority are satisfied that he cannot support the child :
- (3) A police woman shall not be entitled to reckon as approved service any service before the passing of this Act unless she pays to the police authority a sum equal to the aggregate rateable deductions which would have been made from her pay if this Act had applied to her during such service.

Application
to existing
members of
police forces
and existing
pensions.

29.—(1) This Act shall apply to members of a police force who were serving as such at the commencement of this Act, but—

- (a) the scale of ordinary pensions prescribed by this Act for members of a police force shall not apply to any person, other than a police woman, who became a member of a police force before the first day of July, nineteen hundred and nineteen, and was serving as such at the commencement of this Act, unless within three months after the commencement of this Act he gives notice in writing to the police authority of his desire that those provisions shall apply to him, and, where no such notice is given, the scale of ordinary pensions applicable immediately before the commencement of this Act shall continue to apply as though this Act had not been passed ; and
- (b) the provisions of this Act as to the age of compulsory retirement shall not apply to any member of a police force so serving—
 - (i) unless and until he has completed the period of service prescribed by the pension scale applicable to his case as necessary to qualify him to retire without a medical certificate and receive a pension for life at a

rate equal to two-thirds of his pay at the time of his retirement; or

(ii) if he had, before the twenty-third day June, nineteen hundred and six, attained a rank above that of inspector.

(2) The widow of a member of a police force who was serving as such on the first day of September, nineteen hundred and eighteen, or who, having while serving in a police force been called out as a reservist, or entered or re-entered, enlisted or re-enlisted in any of His Majesty's naval, military or air forces for the purposes of the war, was on the said date serving in any of such forces shall, as from the commencement of this Act, be treated, for the purposes of the provisions of this Act relating to pensions and gratuities to widows, whether her husband died before or after the passing of this Act, in the same manner as though he had joined the force after the said date and completed five years' approved service.

(3) The provisions of sections twelve to eighteen inclusive, and sections twenty-two and twenty-three of this Act shall extend so far as applicable to all pensions, gratuities and allowances, whether granted before or after the commencement of this Act.

(4) Nothing in this Act shall affect the right of any member of a police force to reckon as approved service any service which he was entitled so to reckon at the date of the commencement of this Act.

30. In this Act, unless the context otherwise requires,—

Police areas
and author-
ities.

The expression "police area" means one of the areas set forth in the first column of the Third Schedule to this Act; and the expressions "police authority," "chief officer of police," and "police fund," mean, as respects each police area, the authority, officer, and fund, respectively mentioned opposite to that area in the second, third, and fourth columns of that schedule; and the expression "police force" means a force maintained by one of the police authorities mentioned in the said schedule:

Provided that—

- (a) in the case of a county the powers of a police authority under this Act with respect to the accounting for and payment of sums to be carried to the police fund and with respect to investments shall be exercised by the county council, and any sum payable under this Act by the police authority shall be payable by the county council on the requisition of the standing joint committee of the quarter sessions and the county council; and
- (b) any contributions required to meet payments out of the county fund for the purposes of this Act shall be assessed in like manner as contributions to meet the expenses of the police force; and
- (c) the exercise of the powers as to the grant of any pension, allowance or gratuity conferred by this Act on the watch committee of a borough shall be subject to the approbation of the council of the borough.

Act to supersede other Acts, &c.

31. The provisions of this Act shall have effect, notwithstanding anything in any other Act, general or local, or charter, to the contrary.

Special provisions as to fire brigades and fire police.

32.—(1) Where any local Act or Order contains provisions as to a fire brigade or fire police the Secretary of State, on the application of the local authority, may frame and submit to Parliament a Provisional Order repealing or modifying such provisions so as to bring them into harmony with the provisions of this Act, and he may, by such Order, unite any existing fire brigade pension fund with a police fund, and may make any other adjustments as may appear necessary to him in order to give effect to this Act.

(2) A Provisional Order under this section shall be of no force unless and until it is confirmed by Act of Parliament, but, when so confirmed, shall have effect with any modifications made therein by Parliament.

(3) If, where the Bill confirming any such Order is pending in either House of Parliament, a petition is presented against any Order comprised therein, the Bill, so far

as it relates to that Order, may be referred to a Select Committee, and the petitioner shall be allowed to appear and oppose as in the case of Private Bills.

(4) All costs, charges and expenses incurred by the Secretary of State in relation to any Order under this section shall be defrayed by the authority applying for the Order.

(5) Where any members of a police force are employed under the directions of the police authority wholly or partly as firemen, any pension, allowance or gratuity granted to them or their widows, children or dependants shall be paid out of the police fund, and there shall be reckoned as carried to that fund from the fund or rate applicable to the purposes of the fire brigade or fire police such contributions as the Secretary of State may, by general or special order, determine to be a fair contribution in respect of such pensions, allowances and gratuities.

33. For the purposes of this Act,—

Interpretation.

- (1) The expression “total disablement” means total loss of earning capacity in any employment, and, in the case of partial disablement, the degree of disablement shall be based upon the degree to which earning capacity is affected :
- (2) Any injury suffered by a member of a police force :
 - (a) whilst on duty or whilst on a journey necessary to enable him to report for duty or to return home after duty ; or
 - (b) whilst not on duty in the performance of some act which is within the scope of a constable’s ordinary duties ; or
 - (c) in consequence of some act performed in the execution of his duty ; or
 - (d) whilst acting as a fireman, or assisting in the extinguishment of fire, or in protecting life or property from fire ;
 shall be deemed to have been suffered in the execution of his duty :
- (3) Any injury intentionally inflicted, or incurred in the performance of a duty involving special

risks, shall be deemed to be a non-accidental injury.

Application
to Scotland
and Ireland.

34.—(1) This Act shall apply to Scotland subject to the following modifications :—

- (a) The Secretary for Scotland shall be substituted for the Secretary of State, the Court of Session shall be substituted for the High Court, and the expression superintendent shall include lieutenant :
- (b) The proviso to subsection (1) of the section of this Act relating to compulsory retirement, the proviso to subsection (2) of the section of this Act relating to service to be reckoned for pension, the proviso to subsection (3) of the section of this Act relating to payment of pensions out of the police fund and the section of this Act containing special provisions as to fire brigades and fire police shall not apply :
- (c) In the application of the section of this Act relating to appeal in case of forfeiture or refusal of pension, gratuity or allowance, for references to a court of quarter sessions there shall be substituted a reference to the sheriff having jurisdiction in the place where the member of a police force concerned last served :
- (d) In the application of the section of this Act relating to police areas and authorities, the Commissioners of Supply shall be substituted for the quarter sessions and provisoes (b) and (c) shall not apply :
- (e) Subsection (1) of the section of this Act relating to the application of the Act to existing members of police forces and existing pensions shall not apply to Scotland, and in lieu thereof the following provisions shall apply to Scotland :—

“ This Act shall apply to members of a police force who were serving as such at the commencement of this Act, but—

“(a) the scale of ordinary pensions prescribed by this Act for members of a police force shall not apply to any person who became a member of a police force before the first day of July, nineteen hundred and nine-

teen, and was serving as such at the commencement of this Act, if within three months after the commencement of this Act he gives notice in writing to the police authority of his desire that those provisions shall not apply to him, and, where such notice is given, the scale of ordinary pensions applicable at the time of the commencement of the Act shall continue to apply as though this Act had not been passed; and

“(b) the provisions of this Act as to the age of compulsory retirement shall not apply to any member of a police force so serving—

- (i) unless and until he either has completed the period of service prescribed by the pension scale applicable to his case as necessary to qualify him to retire without a medical certificate and receive a pension for life, at a rate equal to two-thirds of his pay at the time of his retirement, or has attained, in the case of a sergeant or constable the age of sixty, in the case of a superintendent or inspector the age of sixty-five, or in the case of a chief constable or assistant chief constable the age of seventy; or
- (ii) if he had, before the twenty-sixth day of July, nineteen hundred and ten, attained a rank above that of inspector.”

(2) This Act shall not apply to Ireland, except so far as otherwise expressly stated.

35.—(1) This Act may be cited as the Police Pensions Act, 1921.

Short title,
commence-
ment, and
repeal.

(2) This Act shall come into operation one month after the passing thereof.

(3) The enactments mentioned in the Fourth Schedule to this Act are hereby repealed to the extent specified in the third column of that schedule:

Provided that any regulations made under any enactment repealed by this Act shall, unless and until revoked or varied, continue in force as though they were made under this Act.

SCHEDULES.

Section 5.

FIRST SCHEDULE.

SCALES OF PENSIONS, ALLOWANCES AND GRATUITIES.

PART I.

MEMBERS OF A POLICE FORCE.

(a) *Ordinary Pensions.*

1. *On retirement with twenty-five years' approved service or over.*—Such proportion of the annual pay as is specified in scale number 1, set out in the subjoined table.

2. *On retirement with ten years' approved service or over with medical certificate.*—Such proportion of the annual pay as is specified in scale number 2, set out in the said table.

(b) *Special Pensions.*

3. *On total disablement from an injury received in the execution of duty—*

- (a) if the injury is non-accidental, such proportion of the annual pay as is specified in scale number 3 of the said table;
- (b) if the injury is accidental, such proportion of the annual pay as is specified in scale number 4 in the said table;
- (c) if it is not possible to determine definitely whether the injury is accidental or non-accidental, such rate intermediate between the rates prescribed in the preceding paragraphs (a) and (b) as the police authority may determine.

4. *On partial disablement from an injury received in the execution of duty.*—Such proportion of the pension applicable in case of total disablement as the degree of disablement bears to total disablement:

Provided that the pension shall not be less than such proportion of the annual pay as is specified, if the injury was non-accidental, in scale number 5 in the subjoined table, and otherwise in scale number 6 in the said table.

(c) *Gratuities.*

5. *On retirement with medical certificate with less than ten years' approved service.*—The gratuity shall be an amount equal to one twelfth of the annual pay for each completed year of approved service, or, where a member of a police force has not completed one year of approved service, an amount equal to the rateable deductions which have been made from his pay.

TABLE.
Scales of Pensions.

Completed years of approved service.	Proportion of Pension to Pay on Retirement.					
	Scale No. 1. On retirement with 25 years' approved service or over.	Scale No. 2. On retirement with 10 years' approved service or over with medical certificate.	Scale No. 3. On total disablement from non-accidental injury received in execution of duty.	Scale No. 4. On total disablement from accidental injury received in execution of duty.	Scale No. 5. On partial disablement from non-accidental injury.	Scale No. 6. On partial disablement from accidental injury.
1 or less -	60ths.	60ths.	60ths.	60ths.	60ths.	60ths.
2 -	—	—	45	30	20	10
3 -	—	—	45	30	20	10
4 -	—	—	45	30	20	10
5 -	—	—	45	30	20	10
6 -	—	—	45	30	20	10
7 -	—	—	45	30	20	10
8 -	—	—	45	30	20	10
9 -	—	—	45	30	20	10
10 -	—	10	45	30	20	10
11 -	—	11	48	32	21	11
12 -	—	12	48	32	22	12
13 -	—	13	48	32	23	13
14 -	—	14	48	32	24	14
15 -	—	15	48	32	25	15
16 -	—	16	51	34	26	16
17 -	—	17	51	34	27	17
18 -	—	18	51	34	28	18
19 -	—	19	51	34	29	19
20 -	—	20	51	34	30	20
21 -	—	22	54	36	32	22
22 -	—	24	54	36	34	24
23 -	—	26	54	36	36	26
24 -	—	28	54	36	38	28
25 -	30	30	54	36	40	30
26 -	32	32	57	38	40	32
27 -	34	34	57	38	40	34
28 -	36	36	57	38	40	36
29 -	38	38	57	38	40	38
30 or over	40	40	60	40	40	40

PART II.

WIDOWS AND CHILDREN.

(a) *Widows' Pensions.*

6. *Widow's ordinary pension.*—The pension shall be—the amount specified under (i) or (ii) of the following scales whichever is the greater, that is to say—

Scale (i)—if her husband was a constable, sergeant, or sub-inspector at the time of his death or retirement, at the rate of 30*l.* a year ;

if he was an inspector (including sub-divisional or chief inspector) at the time of his death or retirement, at the rate of 40*l.* a year ;

if he was of a higher rank at the time of his death or retirement, at the rate of 50*l.* a year :

Scale (ii)—an amount ascertained according to the length of her husband's service and his pay at the time of his death or retirement as follows :

Completed years of approved service.	Percentage of annual pay.
30 years or over - - -	12½ per cent.
25 years and under 30 - - -	10 „
20 years and under 25 - - -	8 „
15 years and under 20 - - -	6 „
10 years and under 15 - - -	4 „

subject, however, in the case of the widow of a pensioner, to a deduction equal to twenty-five per cent. of the amount for each complete year for which her husband's pension had been drawn.

7. *Widow's special pension.*—The pension shall be equal to one-third of her husband's annual pay at the time of his death or retirement.

(b) *Widows' Gratuities.*

8. The gratuity shall be of such amount as the police authority shall determine, but not exceeding one-twelfth of her husband's annual pay for each completed year of approved service, or, where he had not completed one year of approved service, the amount of the rateable deductions which have been made from his pay.

(c) *Children's Allowances.*

9. *Member of a police force or pensioner dying as the result of non-accidental injury received in the execution of duty.*—The allowance in respect of each child who has not

attained the age of sixteen shall be an annual allowance, up to the time that child attains the age of sixteen, at the rate of one-fifteenth of the annual pay; and, if he leaves no widow or the widow dies before all the children attain the age of sixteen, the allowance may be increased up to two-fifteenths of such pay in respect of each child under sixteen; but in any case the aggregate amount paid in any year by way of children's allowances when added to the widow's pension, if any, shall not exceed two-thirds of such pay.

10. *Member of a police force or pensioner dying from any other cause.*—The allowance in respect of each child who has not attained the age of sixteen shall be an annual allowance up to the time that child attains the age of sixteen at the rate of—

10*l.* in the case of a person who was a constable, sergeant or sub-inspector at the time of his death or retirement;

12*l.* in the case of a person who was an inspector (including a sub-divisional or chief inspector) at the time of his death or retirement;

15*l.* in the case of a person who was of a higher rank at the time of his death or retirement:

Provided that the aggregate amount of such allowances in any year shall not exceed 30*l.*, 40*l.* and 50*l.* in the three cases respectively; but if he leaves no widow, or if the widow dies before all the children attain the age of sixteen, the actual allowance or allowances and the aggregate amount of any allowances may be increased by fifty per cent. above the sums hereinbefore mentioned.

(d) *Children's Gratuities.*

11. The gratuity shall be of such amount as the police authority may determine, not exceeding one-sixtieth of the annual pay for each completed year of approved service of the member of the force or pensioner, or, where he had not completed one year of approved service, not exceeding one-sixtieth of the annual pay, so that the total amount of any gratuity or gratuities granted to the children or to the widow and children does not exceed one-twelfth of the annual pay for each completed year of approved service, and the total amount of any gratuities granted to the children shall not, in any case, exceed the annual pay.

(e) *Dependants' Gratuities.*

12. The total amount of any gratuity or gratuities paid to a dependant or dependants of a member of a police force or pensioner shall not exceed the amount of the rateable deductions which have been made from his pay.

PART III.

GENERAL RULES.

13. The same person shall not be entitled, unless expressly so provided in this Act, to a gratuity in addition to a pension or allowance, or to both an ordinary pension and a special pension.

14. A gratuity shall be paid in one sum, except that in special cases it may be paid by instalments or applied on behalf of the grantee if the police authority consider that it would be to the advantage of a widow, child or dependant to do so; and a child's allowance or gratuity or a dependant's gratuity may be paid to a guardian or trustee if the police authority consider that it would be to the advantage of the child or dependant to do so.

15. If the widow of a member of a police force was at the time of his death living apart from her husband (not having been deserted by him), a pension or gratuity shall be paid to her only if the police authority are satisfied that he regularly contributed to her support; and the amount of a pension shall not, in such a case, exceed the amount which her husband contributed.

16. Subject to the provisions of section twenty-seven of this Act, the widow and children of a pensioner shall not receive any pension, allowance or gratuity unless the marriage took place before he retired on pension.

17. The pension of the widow of a member of a police force to whom a gratuity has been granted on retirement shall be payable as from such date after his death as the police authority may determine, and the pension of the widow of a pensioner shall be payable as from the end of the last period in respect of which her husband's pension was paid.

18. The payment of a widow's pension or the balance of a widow's gratuity shall, if at any time she re-marries, be suspended, but, in the event of her again becoming a widow, shall be resumed on proof to the satisfaction of the police authority that her circumstances are such that the pension or balance of gratuity is necessary for her support and that she is of good character and deserving of bounty out of public funds.

19. A widow's pension or the balance of a widow's gratuity shall be payable only so long as she is of good character.

20.—(a) In calculating any pension, gratuity or allowance for the purposes of this Act, "annual pay" means annual pay at the date of death or retirement as the case may require:

Provided that—

- (i) where a member of a police force at the date of his retirement or death holds a rank to which he has been promoted within the three preceding years, his

annual pay at the date of the retirement or death shall be deemed to be the average annual amount of pay received by him for the said three years, instead of the annual amount actually received by him at that date, so, however, that the pension, allowance or maximum gratuity payable shall not be less than if he had continued in his former rank ; and

- (ii) where the pay at the date of death or retirement was weekly pay, the amount of the annual pay shall be deemed to be fifty-two times the amount of the weekly pay.

(b) For the purpose of the foregoing provisions of this rule, the following only shall be recognised as ranks in a police force, that is to say, chief constable, assistant chief constable, super-intendent, inspector, sergeant and constable :

(c) Provided that in Scotland the rank of lieutenant, in the metropolitan police the ranks of commissioner, assistant commissioner and deputy assistant commissioner, and in the City of London police the ranks of commissioner and assistant commissioner shall also be so recognised.

SECOND SCHEDULE.

Section 22.

SUMS TO BE CARRIED TO POLICE FUND.

1. The amount of any fines imposed by a court of summary jurisdiction on members of a police force, or for assaults on members of a police force, and of any fines or portions of fines imposed by a court of summary jurisdiction for other offences, and awarded by the court to informers being members of a police force.

2. Fines or portions of fines, and fees payable to or received by members of a police force, and any other sums of any description which by any Act (including any local or personal Act) are directed or authorised to be carried to the superannuation or pension fund of a police force.

3. The fines imposed by a court of summary jurisdiction for offences under the Licensing Acts, 1872 and 1874, when committed within the police area, or for any offence under a general or local Act similar to any of those offences, unless the authority having control of the fund to which those fines would otherwise be carried otherwise resolve.

35 & 36 Vict.
c. 94.
37 & 38 Vict.
c. 49.

Section 30.

THIRD SCHEDULE.

PART I.

ENGLAND AND WALES.

POLICE AREAS AND AUTHORITIES.

Police Area.	Police Authority.	Chief Officer of Police.	Police Fund.
The City of London as defined for the purposes of the Acts relating to the City police.	The Common Council.	The Commissioner of City of London police.	The funds out of which the expenses of the City police are paid.
The Metropolitan police district.	One of His Majesty's Principal Secretaries of State.	The Commissioner of police of the metropolis.	The metropolitan police fund.
A county - -	The standing joint committee of the quarter sessions and the county council.	The chief constable.	The county fund.
A borough -	The watch committee.	The chief constable.	The borough fund or borough rate or any fund or rate applicable under any local Act for the expenses of the police force.
The river Tyne within the limits of the Acts relating to the Tyne Improvement Commissioners.	The Tyne Improvement Commissioners.	The superintendent or other officer having the chief command of the police.	The tonnage rates and dues and other sums applicable under the Acts relating to the improvement of the river Tyne for the expenses of maintaining the police force.

In this Schedule the expression “county” means an administrative county within the meaning of the Local Government Act, 1988, but does not include a county borough.

Such parts of any county as are within the Metropolitan Police District, or as form part of any other police area, shall not be deemed for the purposes of this Act to form part of the county police area.

PART II.

SCOTLAND.

POLICE AREAS AND AUTHORITIES.

Police Area.	Police Authority.	Chief Officer of Police.	Police Fund.
A county (not including any burgh).	The standing joint committee of the commissioners of supply and county council.	The chief constable.	The police rate.
A burgh - -	The town council.	The chief constable.	The burgh general assessment or any rate applicable to the expenses of the police.

In this Part of this Schedule “burgh” means any royal, parliamentary, or police burgh which maintains a separate police force.

FOURTH SCHEDULE.

Section 35.

ENACTMENTS REPEALED.

Session and Chapter.	Title or Short Title.	Extent of Repeal.
2 & 3 Vict. c. xciv.	An Act for regulating the Police in the City of London.	Sections 11 and 12; in section 13 the words “any wounds or injuries received, or;” section 87.
37 Vict. c. xciv.	The City of London Police Act, 1874.	The whole Act.

Session and Chapter.	Title or Short Title.	Extent of Repeal.
52 & 53 Vict. c. cxxvii.	The City of London Police Superannuation Act, 1889.	Sections 2 to 8 ; section 10 ; sections 13 and 14.
53 & 54 Vict. c. 45.	The Police Act, 1890 -	Sections 1 to 22 (inclusive), 30 to 32 (inclusive), 35 and 36, and the First Schedule.
53 & 54 Vict. c. 67.	The Police (Scotland) Act, 1890.	Sections 1, 2, 4 to 24 (inclusive), 25 (1) and (2), 27 to 29 (inclusive), 31 and 32, and the First Schedule.
56 Vict. c. 10	The Police Act, 1893 -	Section 1, section 2 (3), and sections 3 to 8 inclusive.
57 & 58 Vict. c. vii.	The City of London Police Superannuation Act, 1894.	The whole Act.
6 Edw. 7. c. 7	The Police (Superannuation) Act, 1906.	The whole Act.
8 Edw. 7. c. 5	The Police (Superannuation) Act, 1908.	The whole Act.
9 Edw. 7. c. 40.	The Police Act, 1909 -	Section 5.
10 Edw. 7. and 1 Geo. 5. c. 10.	The Police (Scotland) Act, 1890 (Amendment) Act, 1910.	The whole Act.
1 & 2 Geo. 5. c. lxxxiv.	The City of London (Various Powers) Act, 1911.	Section 25.
8 & 9 Geo. 5. c. 51.	The Police (Pensions) Act, 1918.	Sections 1, 2, 3, and 5.
9 & 10 Geo. 5. c. 46.	The Police Act, 1919 -	Section 6 and section 13 (3).
10 & 11 Geo. 5. c. xxvii.	City of London (Various Powers) Act, 1920.	Section 11.